

		the LWDA. 1. The motion is principally supported by a declaration from attorney Dalia Khalili. Ms. Khalili is not on the caption for this case, and per her own testimony, the only attorneys who billed time to this matter were Launa Adolph and Ellie Goralnick. How does Ms. Khalili have foundation to testify to anything set forth in her declaration, especially the valuation of the PAGA claims? 2. Paragraph 9 of the complaint appears to define the aggrieved employees as all of Defendant’s non-exempt employees, but the agreement defines them as non-exempt clinical nursing instructors. What is the reason for this change? 3. How many pay periods were actually worked by the aggrieved employees? Ms. Khalili states there were approximately 22,000 pay periods at issue, but the figures in the valuation don’t match this total. For example, counsel estimates that 65% of pay periods had off-the-clock work violations. 65% of 22,000 is 14,300, but counsel says there are 7,498 pay periods with off-the-clock work. 4. How large a sample of time and pay data did Defendant turn over (e.g., 10%)? What steps were taken to ensure it was representative of the aggrieved employees across the PAGA period? 5. Did counsel interview anyone other than Plaintiff regarding non-record claims? 6. An expert was retained to assist in valuing the claims. Whom? Please provide a CV. 7. A notice is supposed to be attached to the settlement agreement as Exhibit 1. The copy attached to Ms. Khalili’s declaration has no attached notice. Please provide a draft notice for the Court’s review. 8. Does notice need to be given in any languages other than English?
3	SALDIVAR TORRES vs. GMRI, INC. 2024-01434800	Plaintiff’s Motion for Approval of Settlement The Court has reviewed the supplemental briefing filed in response to the prior minute order. The motion for approval of the parties’ PAGA settlement is GRANTED. The Court finds the parties’ settlement is “fair, reasonable, and adequate in view of PAGA’s purposes to remediate present labor law violations, deter future ones, and to maximize enforcement of state labor laws.” (<i>Moniz v. Adecco USA, Inc.</i> (2021) 72 Cal.App.5th 56, 72.) The Court approves the following distributions: 1. Attorneys’ fees in the amount of \$1,293,333, or 33.33% of the GSA. The Court finds this amount to be a reasonable result in light of the quality of the result obtained, the work performed by counsel, and the estimated lodestar. In approving this amount, the Court is not approving any particular hourly billing rates proposed by counsel.

		2. Litigation costs in the amount of \$20,708. 3. Administration costs in the amount of \$148,590. 4. An enhancement of \$5000 to Plaintiff Saldivar Torres. 5. The amount remaining is to be distributed between the LWDA and the aggrieved employees as provided in the parties’ settlement agreement. Please submit a revised proposed order for the Court’s signature that conforms to the foregoing.
4	Lusardi Construction Company vs. Causey 2025-01498620	Kathleen I. Carrington's Motion to Appear Pro Hac Vicex Jennifer "Ginger" M. Busby's Motion to Appear Pro Hac Vice The unopposed applications of Kathleen I. Carrington and Jennifer “Ginger” M. Busby for pro hac vice admission are GRANTED. The applications comply with the requirements of CRC 9.40.
5	Ojeda vs. Talent4Health, LLC 2025-01504409	Defendant's Motion to Compel Arbitration Case Management Conference Defendant Talent4Health, LLC’s motion to compel arbitration of Plaintiff Licha Ojeda’s claims is GRANTED. Plaintiff is ordered to arbitrate the individual portion of her PAGA claim pursuant to the parties’ agreement. The non-individual portion of her PAGA claim is stayed pending completion of arbitration. An arbitration review conference will take place on April 28, 2027 at 8:30 a.m. in Department CX-101. Grounds for Ruling I. Existence of Agreement A. Standard of Review The moving party bears the burden of proving the existence of an arbitration agreement by the preponderance of the evidence. (<i>Gamboa v. Northeast Community Clinic</i> (2021) 72 Cal.App.5th 158, 164.) But the burden of production shifts in a three-step process. (<i>Id.</i>, at p. 165.) “First, the moving party bears the burden of producing ‘prima facie evidence of a written agreement to arbitrate the controversy.’ [Citation.] The moving party ‘can meet its initial burden by attaching to the [motion or] petition a copy of the arbitration agreement purporting to bear the [opposing party’s] signature.’” (<i>Ibid.</i>) “If the moving party meets its initial prima facie burden and the opposing party disputes the agreement, then in the second step, the opposing party bears the burden of producing evidence to challenge the authenticity of the agreement. [Citation.] The opposing party can do this in several ways. For example, the opposing party may testify under oath or declare under penalty of perjury that the party never saw or does not remember seeing the agreement, or that the party never signed or does not remember signing the agreement.” (<i>Ibid.</i>) “If the opposing party meets its burden of producing evidence, then in the third step, the moving party must establish with admissible evidence a valid arbitration agreement between the parties. The burden of proving the agreement by a preponderance of the evidence remains with the moving party.” (<i>Id.</i>, at pp. 165-166.) B. Analysis